

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, April 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26844 against Police Officer Robert Desena, Tax Registry No. 961726. The case was conferenced on April 11, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the dismissal of the charges in return for the recommended negotiated penalty of Command Discipline Schedule "A" and forfeiture of five (5) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2022-26844BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, DESENA	FIRST ROBERT	M.I. J	COMMAND 060 PRECINCT
SHIELD NO. 3631	TAX REGISTRY NO. 961726	SOCIAL SECURITY NO.	DATE APPOINTED 07/13/2016	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Robert Desena, on or about March 16, 2021, at approximately 1530, while assigned to 060 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Robert Desena, on or about March 16, 2021, at approximately 1530, while assigned to 060 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	
3. Police Officer Robert Desena, on or about March 16, 2021, at approximately 1530, while assigned to 060 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, was discourteous to § 87(2)(b) in that he stated in sum and substance, "Come outside. I'm sick of this shit. Every time I	DISMISSED	

DC Burtio
FIRST DEPUTY COMMISSIONER

5/22/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

6/5/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26844
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, DESENA	FIRST ROBERT	M.I. J	COMMAND 060 PRECINCT
SHIELD NO. 3631	TAX REGISTRY NO. 961726	SOCIAL SECURITY NO.	DATE APPOINTED 07/13/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
come here you're always sleeping" and "that's enough of this shit. Everyone's fucking sleeping" without police necessity.		
4 . Police Officer Robert Desena, on or about March 16, 2021, at approximately 1530, while assigned to 060 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, was discourteous to § 87(2)(b) "Come outside. I'm sick of this shit. Every time I come here you're always sleeping" and "that's enough of this shit. Everyone's fucking sleeping" without police necessity.	DISMISSED	
5 . Police Officer Robert Desena, on or about March 16, 2021, at approximately 1530, while assigned to 060 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he refused to provide his name to § 87(2)(b) without sufficient legal authority.	DISMISSED	

DC [Signature] 5/22/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab... 6/5/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner May 21, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-26844 against Police Officer Robert Desena, Tax No. 961726, with the recommendation that Charges and Specifications against Police Officer Desena be dismissed and that Police Officer Desena receive a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

Edward A. Caban

EDWARD A. CABAN
POLICE COMMISSIONER